

**FY26 VEHICLE LEASE AGREEMENT FOR
NCIS, MIDDLE EAST FIELD OFFICE DJIBOUTI
STATEMENT OF WORK (SOW)**

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1. OBJECTIVE

The purpose of this requirement is to obtain non-tactical vehicle (NTV) transportation services for the Naval Criminal Investigative Service Resident Agency, Middle East Djibouti (NCISRA MEDJ) in performance of their assigned mission in visiting and securing the water ports for incoming US Navy vessels and responding to criminal and CI/CT cases in and around the country.

2. BACKGROUND

The NCISRA MEDJ requires the use of four (4) 4x4 sports utility vehicle (SUV) type vehicles which can handle extremely rough terrain, high temperatures, and roads of low quality. Agents must be able to safely and securely enter and depart all areas of the city and local areas without difficulty. By providing these required vehicles, this supports MEDJ agents in their mission.

3. PERIOD OF PERFORMANCE

60 Months Total (1-Year Lease with 4-Option Periods based on delivery of NTV received/returned dates):

CLIN 0001 Base Period Vehicle, Four (4) (V-6 4x4 SUV's): 08 Sept 2026 – 07 Sept 2027*

CLIN 1001 Option Period 1, Four (4) (V-6 4x4 SUV's): 08 Sept 2027 – 07 Sept 2028*

CLIN 2001 Option Period 2, Four (4) (V-6 4x4 SUV's): 08 Sept 2028 – 07 Sept 2029*

CLIN 3001 Option Period 3, Four (4) (V-6 4x4 SUV's): 08 Sept 2029 – 07 Sept 2030*

CLIN 4001 Option Period 4, Four (4) (V-6 4x4 SUV's): 08 Sept 2030 – 07 Sept 2031*

**Dates are notional only.*

The Government may extend the term of the contract in accordance with FAR 52.217-9, Option to Extend the Term of the Contract – Services incorporated into the resulting contract.

Additionally, the Government may need to extend the performance period beyond the established 60 months stated above. FAR 52.217-8, Option to Extend Services, provides the regulatory authority to extend contract performance up to an additional six (6) months.

4. DEFINITION OF TERMS

4.1. New Vehicles: New vehicles are defined as motor vehicles i.e., vans, sedans, sport utility vehicle (SUV), and trucks that are sold or provided in the current model year and have not been previously used

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by another party. They should have less than 1,610 km (~1,000 miles) on the odometer and be equipped to the specific vehicle specifications attached to this SOW.

4.2. **Applicable Rates:** Specific definitions are provided below. Monthly rate shall apply for services that are at least 30 days and if the customer has completed a minimum of one month of service, succeeding days will be at the pro-rated monthly rate. If the service was initially planned for one month and the service is ceased prior to the completion of the month, the daily rate (if service was kept 6 or less days) or weekly rate (service was kept at least 7 days but not more than 29 days) will apply. Annual rate shall apply for services covering 12 months.

4.3. **Vehicle Claim:** This includes traffic violations and damage to vehicles. The Contractor will put a \$5,000 AUD (~\$3,300 USD) deductible in the contract and the Government will pay everything over that dollar amount.

5. VEHICLES

5.1. List of Vehicles

CLIN	QTY	Type	UOM	Unit	Base Year Start Date	Base Year End Date
0001	4	4x4 SUV	12	Months	Sept 8, 2026	Sept 7, 2027

It is the Contractor's responsibility for the following:

5.2. **Required Vehicles:** Provide new vehicles as required within this SOW. The Contractor shall retain title of the vehicles. The Government will not have or acquire any right, title, or interest in, or to, any vehicle included in this lease except the right to use and operate it as provided herein.

5.2.2 The Contractor shall provide vehicles that are properly registered, licensed, and comply with all local safety laws ordinance rules and regulations. All vehicles shall contain a set of owner's/operator's manuals.

5.2.3 The Contractor shall have warranties for all vehicles. The warranty provisions are to be the manufacturers' standard warranty for new vehicles. The Contractor shall provide a comparable replacement or loaner, acceptable to the Government, with no lapse during warranty problems/repairs. Replacement vehicles shall be provided at no additional cost to the Government unless the vehicle repair is due to operator negligence. In the event the Contractor notifies the Government of safety emissions or other inspection or recall campaign, the Government will immediately follow the Contractor's instructions with respect thereto.

5.2.4. The Contractor shall ensure the vehicle has current safety check at all times at no cost to the Government.

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5.2.5. The vehicles will contain a full tank of gas at the time of pick up and drop off.

5.3. Vehicles Specifications:

All vehicles will be provided with a Vehicle Identification Number (VIN), license plate, and must match or exceed the minimum specifications stated in the attached vehicle specification and noted below:

5.3.1 Self-propelled motor vehicles designed for highway or cross-country operations. The term vehicles refer to any vehicle furnished by the Contractor under this contract, including temporary vehicles and/or replacement vehicles. The vehicle types to be furnished under this contract are defined as follows:

- Model: (LHD) Toyota Land Cruiser HZJ 76 4x4 or similar
- Model Year: 2026
- Engine: 4.5L Turbo Diesel, Cylinder in line, Common Rail
- Power: 195HP/3800RPM; Torque: 43.8KG / 1200-3200
- Transmission: 5-Speed Manual
- Fuel Tank: 130L
- Seating Capacity: 5
- Color: Vehicle shall be white
- All leased vehicles shall be diesel fuel

5.4. Vehicle Requirements:

- Vehicles shall be delivered with full fuel tank, 2 sets of keys, and in a clean condition (interior and exterior).
- The vehicles shall be left hand drive and free of any mechanical or structural (interior and exterior) defects, as well as any abnormal wear and tear.

5.5. Vehicle Availability: All vehicles must be available for the entire lease period.

5.6. Vehicle usage: All vehicles shall be leased on an unlimited distance basis. The use of vehicles within this contract is restricted to government personnel in possession of a locally valid driving license.

5.7. Emission Controls: Vehicles and engines shall comply with all local regulations governing control of air pollution from new motor vehicles and new motor engines in effect on the date of manufacture. Contractor will provide for any required emissions inspections and regulatory compliance.

5.8. Devices and Accessories: The Government will be responsible for removing all devices and accessories before the leased vehicles are turned over to Contractor at the end of leased period, and to

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restore all damages, if any, resulting from the installation. The Contractor may use placards for temporary identification of vehicles except that the placards may not contain any references to the Contractor that may be construed as advertising or endorsement by the Government of Contractor.

5.9. Vehicle Maintenance: The Contractor shall ensure each vehicle meets or exceeds the following minimum maintenance standards at the time of acceptance and throughout the lease period.

5.9.1. Normal Wear and Tear: Any dents, dings, paint chips, scratches, pitted windshields (not cracked), and interior wear such as soiled carpets and seats that would normally accrue to a motor vehicle over a period of nine (9) to seventeen (17) months of use.

5.9.2. Abnormal Wear and Tear: The following list of discrepancies shall constitute abnormal wear and tear when identified during the inspection of vehicles by the Government.

- Missing Parts
- Missing Tires (including spare tire)
- Body Work: Scratches through the metal and scratches or dents over an inch in length or diameter. However, rusted areas resulting from road salt or salt air less than one inch in diameter will not be considered abnormal wear and tear
- Paint Work: Scratches or chips over one inch in length or diameter
- Glass: Any crack, pit, chips, or scratches less than one inch in length but which are in the critical area of the driver's vision or which will not pass safety inspection will also be deemed abnormal wear and tear
- Other Glass: Cracked or broken, including inoperative window mechanism
- Lights: Lenses or sealed beams broken
- Chrome and other Bright Metal Exterior Trim
- Bumpers: Dents over six inches in length or diameter. Scratches in the metal over 12-inches long. Decals, distinctive markings, lettering, or numbering not removed
- Grill: Broken grill. Dents larger than three inches in length or diameter
- Interior: Missing seats, torn seat backs, head lining, or door panels, floor mats with tears or holes larger than one inch

5.9.3 Condition: Both the exterior and interior of the vehicle shall be free of excessive soil, rust, and damage. All mechanical controls shall be operable. All vehicle systems shall be operable and kept in line with manufacturer's recommended maintenance program.

5.9.4. Safety Items: The Contractor will maintain each vehicle pursuant to local city and country safety requirements. In addition, each vehicle shall have the following operational safety features: seatbelts for the driver and each passenger, headlights, reverse camera, windshield wipers, parking brake, and horn.

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5.9.5. Replacement Tires: The Contractor will inspect and rotate tires during regular maintenance servicing. Contractor will provide replacement tires if required at time of maintenance servicing at no charge to the Government.

5.9.6. The Contractor will provide routine/standard maintenance (i.e., oil changes, air filter changes, windshield wiper repair, ensure proper tire pressure, wheel alignment, rotate tires, etc.) on all vehicles for the duration of the contract. The location for routine/standard maintenance shall be located in the Djibouti area. Contractor will provide 30-day notice to the Contracting Officer's Representative (COR) on coordinating and scheduling the routine/standard maintenance appointment. Upon completion of the initial inspection when the leased vehicle is found to be satisfactory, the Contractor shall ensure the service required for all unsatisfactory problems are replaced or fixed according to safety and quality control standards. When a major operational problem to a vehicle is identified or if a scheduled service cannot be completed within 24 hours, the Contractor will accept the vehicle for repair and replace with an equivalent model as a temporary replacement.

6. INSPECTIONS AND DOCUMENTATION

6.1. Receive/Check-out Inspection:

6.1.1 Inspection of Vehicles: Every time a vehicle is delivered to the Government, such vehicle shall be subject to a joint inspection by the Government and the Contractor prior to acceptance at the required dispatch point. The Contractor and the Government shall both obtain endorsement of delivery by the Contractor to the Government and also obtain an endorsement to show return and receipt from the Government to the Contractor at the end of the lease period of each vehicle. The inspection shall consist of, but is not limited to, checking all vehicle requirements and vehicle documentation listed below.

6.2. Return Inspection:

6.2.1. It is the responsibility of the Contractor to wash the vehicle upon return.

6.2.2. Upon return of the vehicle, both the Contractor representative and COR shall conduct a joint inspection of the vehicle. No claim for damages will be allowed without signed evidence of this joint return inspection. If the United States Government (USG) disputes damage claim made by the Contractor, this fact shall be recorded on the joint return inspection sheet and signed by the USG representative. Only commissioned Officers, SNCOs, and CORs are authorized to inspect and sign the joint return inspection sheet. In the event a vehicle is returned with damage, a commissioned Officer or COR must sign the joint return inspection sheet.

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6.2.3. All Return Inspection sheets shall be sent to the COR no later than five (5) business days after return. The inspection sheet shall have a legible signature (Rank/First Name/Last Name/Work Section) of the Officer, SNCO, or COR who performed the return inspection.

6.2.4. Minor Damages: The Contractor will be responsible for minor damages not exceeding \$5,000 AUD, equivalent to roughly ~\$3,300 USD. (Examples of minor damages are scratches, minor dents to fenders or vehicle body, damages to windscreens, or damages not attributed to a moving vehicle accident.) All claims exceeding \$5,000 AUD (~\$3,300 USD) will be submitted to the Contracting Officer within ten (10) business days after vehicle return. The Contractor will submit to the Contracting Officer the following documentation in order to be considered a valid and complete package:

6.2.4.1. Return Inspection checklist signed by the Government Representative and Contractor's Representative

6.2.4.2. Photographs of damages

6.2.4.3. A minimum of two (2) repair estimates from independent estimators for the damage claim submitted

6.2.4.4. Annotate the contract number on all documents

6.2.5. After review of all damage claim documentation, the Contracting Officer will make a determination for equitable adjustment and a modification will be issued. The adjustment will cover the negotiated damages minus \$5,000 AUD (~\$3,300 USD).

6.3. Turnover to Option Year(s)

6.2.1. Option Year turnover will commence immediately upon completion of the current base one-year lease contract agreement.

6.2.2. If a new or different vehicle will replace the currently leased vehicle due to damages or unacceptable conditions, the requirements of paragraph 6.1 Receive/Check-out Inspection will apply for the replacement vehicle.

6.2.3. If the Government extends use of the current leased vehicle into the Option Year, the Government and Contractor will fill out a new Receive/Check-out Inspection Checklist sheet.

6.2.4. Replacement tires: 30-days prior to the start of the Option Year, vehicle tire inspection will be performed on all leased vehicles. The Contractor shall replace any tire when the tread depth becomes less than 4 millimeters or when any unsafe condition is determined in writing by the COR.

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6.4. Vehicle Documentation: Vehicles shall be fully taxed, licensed, and registered for the entire lease period. Vehicles shall be in accordance with all laws and regulations of the Motor Vehicle Department of the countries where vehicles are operated. The below listed documents, in original (unless otherwise specified) shall be provided at time a vehicle is delivered to the Government. If the Contractor chooses to furnish non-original documents (e.g., photocopies), any resulting ticket/fine from competent authorities will be turned over to Contractor for payment immediately. The documents are the following:

- Insurance policy
- Property tax receipt
- Circulation booklet
- Lease agreement (a copy is acceptable)
- Roadside emergency service instructions

6.5. Failure to provide Vehicles: Acceptable vehicles, as used in this paragraph, means all vehicles, including replacement vehicles resulting from maintenance/breakdown, meeting all requirements set forth in this specification. The Government will accept or reject a vehicle within one working day after receipt. If the Contracting Officer determines that any vehicle furnished is not in compliance with the contract, the Contracting Officer will promptly inform the Contractor in writing. The Contractor shall eliminate any discrepancies found by the Government or, if deemed necessary by the Contracting Officer, shall replace the vehicle with another appropriate vehicle. The Contractor shall correct the defects as required by the Contracting Officer or provide replacement vehicles within two calendar days from the notification of "Vehicle Rejected". In the event the Contractor cannot furnish an acceptable vehicle within the time limits established by this contract, the Government may, at its option:

- Deduct from Contractor's invoice amount based on 1/30 of the monthly lease cost set forth in the Contract Line-Item Number (CLIN) Schedule, multiplied by the actual number of calendar days of each day the vehicle was not in compliance within the contract requirements: or
- Correct the defect or obtain a vehicle of a similar type from another source until an acceptable vehicle is furnished by the Contractor and charge or offset against the Contractor any excess costs occasioned thereby.

6.6. Provision of Vehicles: Performance Objectives and Standards: The Contractor shall provide various types of vehicles to the US Government at the dispatch points stated in the contract. Refer to the CLIN Schedule for number and type of vehicles to be furnished under this contract and Paragraph "Dispatch Points" for delivery locations under this contract. The Contractor shall comply with all requirements specified herein including, but not limited to, timely delivery/pickup, proper license/insurance, vehicle technical characteristics, and adequate maintenance to provide safe and reliable vehicles throughout the lease period.

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Performance Standards:

- All types and quantities of vehicles specified are delivered on time at the specified locations.
- All vehicles are properly licensed, and fully meet the required vehicle characteristics.
- Minimal replacement is required during the lease term as a result of poor vehicle quality and/or poor maintenance.

6.7. Vehicle Delivery: Performance Objectives and Standards: Vehicle shall be delivered on the first day of lease period at the various Dispatch Points. Vehicle shall be delivered during Government regular working hours: 0700 to 1600.

Performance Standards:

- Vehicles are delivered as scheduled.
- Vehicles pass all inspection points.
- Vehicle have all required documentation.

6.8. Vehicle Turn-Over during the Leasing Period: Vehicle shall be turned over every 19,300 kilometers or 12,000 miles.

6.9. Vehicle Maintenance: Performance Objectives and Standards: Except as specified in paragraphs "Government Provided Materials" and "Government Provided Services," the United States Government shall provide full maintenance services to maintain safe and reliable vehicles throughout leasing period. Performance Standards: Vehicles are properly maintained in accordance with industry standards.

7. VEHICLE ACCIDENTS/BREAKDOWNS

7.1. Vehicle Accident and Breakdown Service:

7.1.1. The Contractor shall provide a reputable vehicle accident and breakdown response service 24 hours a day, seven (7) days a week in the event a vehicle becomes un-roadworthy due to mechanical breakdown or accidental damage. Within **24 hours** of receiving a request, the Contractor will provide a replacement vehicle (of the same or better vehicle class) for any vehicle that becomes un-roadworthy due to mechanical breakdown, accidental damage, or when servicing will take longer than one day. All pick up and removal of inoperable vehicles caused by mechanical breakdown shall be the contractor's responsibility and expense. All costs to pick up and remove inoperable vehicles caused by an accident or driver negligence resulting in mechanical failure will require invoices to be submitted to the Contracting Officer for equitable adjustment and a modification to be issued.

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7.2. Instructions for Moving and non-Moving Vehicle Accident Damages Incurred during the Period of Performance:

7.2.1. The Government's Representative involved in the accident will be responsible to contact the Contractor and COR no later than 8 hours after the accident.

7.2.2. The Government's Representative will be responsible to provide a written statement, from all involved, including a police report and photographs of the accident damages. Documentation shall include names and phone numbers of all involved.

7.2.3. The Contractor will notify the Contracting Officer within three (3) business days of any accident damages incurred during the leasing period of performance. Following this notification and within ten (10) business days, the Contractor will submit to the Contracting Officer the following documentation in order to be considered a valid and complete package:

7.2.3.1. Receive/Check-out Inspection checklist signed by the Government Representative and Contractor's Representative

7.2.3.2. A copy of the Government's Representative accident written statement

7.2.3.3. A copy of the Police Report

7.2.3.4. A minimum of two (2) repair estimates or an independent or an independent assessment for the damage claim submitted

7.2.3.5. Annotate the contract number on all documents

8. VEHICLE INSURANCE

8.1. Insurance Policies:

The Contractor shall provide to the Contracting Officer within 10 calendar days after contract award, a notarized copy of the Contractor's vehicle insurance policy. The Contractor shall provide and maintain full coverage insurance on all vehicles under this contract in accordance with local law. This insurance shall cover all accidents, on or off road, whether or not another party is involved. The Contractor shall be responsible for any damages to a vehicle that does not have the insurance coverage described in this paragraph. The policies evidencing required insurance shall contain an endorsement to the effect that any cancellation or any material change adversely affecting the interest of the U.S. Government shall not be effective (1) for such period as the laws of the host nation in which this contract is to be performed prescribe or (2) until 30 days after written notice to the Contracting Officer, whichever period is longer. The policies shall exclude any claim by the insurer for subrogation against the U.S. Government by reason of any payment under the policies. The Contractor shall provide an updated insurance policy to the Contracting Officer within 24 hours any time the insurance policy changes. (i.e., different insurance company,

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different coverage level, new AOR added or subtracted). The insurance is required for damage up to \$5,000 AUD (\$3,300 USD) and that the government will pay legitimate claims for damage above \$5,000 AUD (\$3,300 USD).

8.2. Uninsured Damages:

The Contractor may submit a claim to the Contracting Officer for any vehicles destroyed or damaged, while in the possession of the Government, due to negligence. The claim shall include a detailed proposal, documentation substantiating the claim, and an invoice for the replacement vehicle if required by the contracting office. The Government will compensate the Contractor in an amount determined by the Contracting Officer. The amount must be proven to be fair and reasonable based upon market conditions. For example, three quotes from different dealers for the same make, model, and trim level plus or minus one model year and 10,000 KMs. All paperwork proving that the vehicle was destroyed or damaged will be provided to the Contracting Officer prior to authorizing payment. Transportation services payments for a destroyed vehicle will end at the time of destruction, and no further transportation service payments will be made on the vehicle unless the lessor can supply an equivalent vehicle to replace it within 24 hours of the destruction. The Government, however, is not responsible for vehicles under the Contractor's control at the time of damage or destruction. Total settlement fees shall not exceed the fair market value of the vehicle adjusted for the fair market value of any modifications made to the vehicle.

9. FINES

The Government will not permit the Contractor's vehicles to be used in violation of any host nation laws, rules, or regulations. If the Government is in violation of any host nation laws, rules, or regulations, they will reimburse the Contractor for fines or penalties incurred against the Contractor's vehicles, and paid by the Contractor. If violations of host nation law occur, written notices, legal documentation, paid traffic tickets, paid traffic fines, etc., will be used by the U.S. military as evidence. The Contractor shall forward all documentation in regard to these violations to the COR and the Contracting Officer. Only actual fine and penalty costs, verified by the COR and Contracting Officer will be paid. No other legal fees or fees criminal in nature will be paid by the U.S. Government, nor will any overhead, G&A, or profit be paid on the fines or penalties.

10. AUTHORITIES

The U.S. Government (Exercise Executive Agent) retains the right to make changes to this SOW, prior to contract award, based on factors that are unknown at this time (i.e., funding is formally decreased, changing dates shifting slightly, etc.). The Contracting Officer is the only person authorized to approve any changes to the requirements of the contract and notwithstanding provisions contained elsewhere in the contract, the authority remains solely with the Contracting Officer. In the event the Contractor effects any change at the direction of any person other than the Contracting Officer, the change will be considered to have been made without authority and no adjustment will be made in the contract price as a result of the change.

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12. MISCELLANEOUS NOTES

All rates quoted are to United States Dollars (USD) and Goods and Services Tax (GST) exclusive. The US Government will cooperate with the contractor to ensure the Contractor's documentation requirements under Djibouti law are met.